FROM THE

EDITOR-IN-CHIEF

The brutal rape and murder of a trainee doctor in Kolkata on August 9 once again brought alive the everyday threats that Indian women suffer from. The extraordinary fiendishness of the act itself punched the nation in the gut, but what was even more horrific was the fact that the crime unfolded in the victim's place of work, which was supposed to have a safe dedicated space to rest in, security on all floors and vigilant CCTV cameras around.

While the crime elicited protests from all quarters, including international ones, the medical fraternity erupted in anger, having stayed silent for so long about the dismal conditions they worked in, including onerous working hours, with no proper restrooms, and decrepit facilities. Women are rendered even more vulnerable in this scenario, as they also have to contend with sexual harassment.

Another volcano has erupted in the Malayalam film industry. The release of the Hema Committee report has triggered an avalanche of #MeToo allegations against top Malayalam actors and a never-before-focus on the working conditions that await women during the shooting of cinema—everything from the casting couch to the lack of elementary amenities that render their daily lives unsafe.

Therefore, safety at the workplace has become a big factor in women's employment decisions. Still among the lowest compared to other countries, India's female labour participation rate is inching upward, rising steadily over the past six years, and was 37 per cent last year. There are roughly 200 million women in India's paid workforce. Agriculture, manufacturing and construction jobs are the main occupations, but educated urban women are expanding their horizons. They can now be found across industries, from IT and ITeS to media and telecom, pharma and healthcare, banking and consulting. As ambitious as the men, they are willing to work long hours and night shifts.



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With increasing participation, however, has come increasing risk for the working woman. Crimes against women in the workplace have increased, with a study of 708 NSE-listed companies by Delhi-based Udaiti Foundation, an organisation for women's economic empowerment, recording a 29 per cent rise in cases—from 1,807 in FY23 to 2,325 in FY24.

Safety, however, is not just about the prevention of sexual harassment, though it remains its most crucial aspect. Despite a proliferation of laws—the Factories Act, 1948; the Contract Labour (Regulation and Abolition) Act, 1970; the Inter-State Migrant Workmen (RE&CS) Central Rules, 1980; and the Shops & Establishment Act of every state—that mandate facilities such as separate toilets, seating, reasonable working hours, creches and canteens, and transport home if it gets late, establishment after establishment breaches the requirement with astonishing regularity. The bigger companies at least do the bare minimum for their women employees. "In most smaller institutions, like the MSMEs, government offices, police stations, and even the courts," says Audrey D'Mello, director at the Majlis Legal Centre, which offers legal and social support to women and child victims, "there is a complete lack of policy implementation, and even basic safety requirements are not met." Thus, a 2019 survey by the Vidhi Centre for Legal Policy found that out of the 665 district court complexes it assessed, 100 lacked toilet facilities for women, and even among the 585 complexes (88 per cent) that had washrooms, 60 per cent were not fully functional.

It's easy to see where the problem lies. Like much else in India, it is all about compliance. Many laws are passed with noble intentions but fail because of non-implementation or get riddled with corruption. The law relies on the good offices of companies to comply with what they mandate. In the absence of any monitoring mechanism, either in the form of a government agency or an independent rights group to conduct audits, it's business as usual at most workplaces.

The same is true of ICs or the internal committees every institution is required by law to have if they employ 10 or more people. In most instances, the ICs are either given a complete go-by or, if they do exist, they are often not independent, interested more in protecting the image of the company than the rights of the individuals. Equally concerning is the rising pendency in resolving complaints—Udaiti Foundation found a 67 per cent year-on-year rise from 260 in FY23 to 435 in FY24.

So, where is the solution for problems that are not exceptions but the norm? In the collective effort of civil society, government, law enforcers and corporates to make the country a better place for women to live, work and travel in. It should not take a rape or systematic sexual exploitation to stir the country into action. Following the R.G. Kar incident, the Centre, the West Bengal government and the courts have jumped in with guidelines that secure the safety of the medical fraternity, particularly the women. The Malayalam film industry has also set out on a path of self-correction, with many of its top actors resigning from the film associations they head.

The battle must continue. There can be no let-up in training and awareness programmes to counter patriarchal attitudes in society, gender stereotyping and the male sense of entitlement over women's bodies. Governments, too, must not just make policies but also set up monitoring mechanisms to ensure compliance with laws. After all, just a simple expedient of making bus travel free for women in several states has made the working lives of countless women easier. Technology is another enabler. Mobile apps and GPS tracking are helping companies offer their women employees a safer ride home.

Our editorial team, with the collective effort of our woman colleagues, delves into the subject with a clear, actionable plan. Reports on the best practices followed by companies that deliver the highest safety reporting by women are one of the most useful toolkits this week's package offers. It is revelatory to notice how much safety basic institutional mechanisms can provide—periodic check-ins, regular communication from ICs that lets everyone know that vigil is never down, anonymous and safe channels to voice all forms of misdemeanour, emergency hotlines.

They say the road to Viksit Bharat will require a growth of 8 per cent annually. Just increasing the number of women in the workforce can help India achieve the target. That in itself should be reason enough for the nation to ensure the safety and dignity of its women in the workplace and beyond.

(Aroon Purie)